

23PSCV00358 23PSCV00358

County: los-angeles

Division: Civil Law and Motion

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Case Number: 23PSCV00358 Hearing Date: August 18, 2026 Dept: H

Gonzalez v. Belinski,

et al., Case

No. 23PSCV00358

ORDER ON

APPLICATION FOR DEFAULT JUDGMENT

Plaintiff Anna Gonzalez's Application for

Default Judgment as to Theodore D. Duran & DNL Co. dba WeRoof CalPro

Renovations is DENIED without prejudice.

Background

Plaintiff Anna Gonzalez ("Plaintiff") alleges as follows:

On or about April 1, 2019, Plaintiff purchased the property located at 142 S. Pintado Drive in Diamond Bar (the "subject property") from Victor A. Belinski and Lila Lane Belinski (together, "Sellers"). Jessica Khoury ("Khoury"), an agent of RTD Group, Inc. dba Keller Williams Realty ("RTD"), represented Plaintiff in the transaction, while Fenny Widhiahrini ("Widhiahrini"), an agent of Ahmed H. Almas dba Newell Banker Real Estate, represented Sellers in the transaction. Theodore D. Duran ("Duran"), an agent of DNL Co. dba WeRoof CalPro Renovations ("DNL"), performed a roof inspection and certified the roof on the subject property. Sellers failed to disclose extensive plumbing issues, prior roof leaks, the fact that the sunroom addition that they performed was unpermitted, and extensive electrical issues, which were all unknown to Plaintiff.

On February 6, 2023, Plaintiff filed a complaint, asserting causes of

action against Sellers, DNL, Duran, RTD, Khoury, Widhiahrini, Ahmed H. Almas dba Newell Banker Real Estate, and Does 1-25 for: (1) Breach of Written Contract for the Sale of Real Property, (2) Breach of Written Contract for Certification of Real Property, (3) Breach of Fiduciary Duty, and (4) Violation of Civil Code § 1102, et seq.

On February 14, 2023, Plaintiff filed an "Amendment to Complaint," correcting the name of Ahmed H. Almas dba Newell Banker Real Estate to "Almas H. Ahmed dba Newwell Banker Real Estate" ("Newwell Real Estate").

On July 6, 2023, Plaintiff dismissed RTD, without prejudice; that day, Plaintiff filed two "Amendment[s] to Complaint," wherein Riverside Inland Real Estate, Inc. dba Keller Williams Realty Riverside Central Market Center ("Riverside Inland") and Stephanie DeBonis ("DeBonis") were named in lieu of Does 1 and 2, respectively.

On February 13, 2025, DNL's default was entered. On February 14, 2025, Plaintiff dismissed DeBonis, without prejudice.

On May 27, 2025, Plaintiff dismissed Khoury and Riverside Inland, with prejudice.

On May 28, 2025, Duran's default was entered.

On August 21, 2025, the Court denied Plaintiff's application for default judgment without prejudice due to several deficiencies.

On November 24, 2025, the Court continued the status conference RE: Defaulted Defendants and ordered mediation to be completed by April 3, 2026.

On April 21, 2026, the Court noted during the Status Conference that the matter was settled as to Sellers only.

On July 14, 2026, Victor A. Belinski and Lila Lane Belinski were dismissed with prejudice.

On August 11, 2026, Ahmed H. Almas dba Newwell Banker Real Estate and Fenny Widhiahrini were dismissed with prejudice.

A Case

Management Conference is set for August 18, 2026.

Discussion

Plaintiff's

Application for Default Judgment is denied without prejudice. The following defects are noted:

1. It is unclear to the Court how the \$31,021.00 "[d]emand of complaint" set forth on Page 1, Paragraph 2(a) of Judicial Council Form CIV-100 Request for Court Judgment was calculated. Exhibit C suggests that \$14,926.00 was paid pursuant to the October 22, 2021 invoice. The other document attached to Exhibit C is a proposal from Kertland Roofing, Inc., dated April 24, 2020, without an indication that the proposal was accepted. Neither Plaintiff nor counsel speak to the Kertland proposal. Even if one were to add the two sums (\$14,926.00+\$15,700.00), the total comes out to \$30,626.00. It also seems like the proposal is for the same job that is invoiced.

2. Counsel Tim J. Pollard attests that Exhibit C consists of "invoices, contractor estimates, and photographs evidencing the ongoing water intrusion and resulting damage." (Pollard Decl., ¶ 8, Exh. C.) Exhibit C contains two copies of an invoice from P.H. Roofing/Paul Harris dated October 22, 2021 and two pages of a Proposal from Kertland Roofing, Inc. dated April 24, 2020. No photographs are attached.

3. Counsel requests a judgment of \$31,556.00 in his declaration. Plaintiff requests \$32,577.00 on Page 1, Paragraph 2(f) of Judicial Council Form CIV-100 and in the proposed judgment. These discrepancies should be reconciled.

Accordingly, the application is denied without prejudice, and Plaintiff is directed to submit a revised and complete default judgment application that addresses the aforementioned issues. Any subsequently submitted default prove-up application must be full and complete, in and of itself. The Court will not review piecemeal submissions.